

An of Family Court Madness—and Mothers' Mutiny

MEDIA HIGHLIGHTS

Today's popular media have already begun to report on the gravity of the family court problem. In January 2003, the *Boston Phoenix* ran a ten-thousand-word, front-page feature story profiling the severe malfunctioning of the family court system.¹ The article's subtitle alone was alarming: "Across the nation, family court is the last place a mother concerned about child sexual abuse by the child's father wants to find herself."

Shortly after the *Phoenix* article appeared, Garland Waller, a Boston University communications professor, appeared on *Katherine Crier Live* (Court T.V., January 24, 2003) to discuss the same issue. Professor Waller had produced a film documentary in 2001 (*Small Justice: Little Justice in America's Family Courts*)² that profiled several protective mothers and the children who had been taken from them after they reported their suspicions about the children's fathers. On Crier's show, Waller was blunt and passionate: "Our family courts have become a national scandal ... a system unto itself" in which mothers "pleading for protection" [for their sexually abused children] are "often punished by the judge" with loss of custody and even deprivation of their right

to visit their children.³ She called for “immediate action” to redress this “national crisis.”

Such tocsins could actually be heard a decade earlier when, in 1992, the Oscar-winning actress and film director Lee Grant produced and narrated an HBO documentary called *Women on Trial*. That film presented the stories of four Texas mothers whose children were placed by court order with their fathers, despite strong evidence that the fathers had abused them.

Stories of mothers losing custody of their children to sexually abusive ex-husbands or former partners have appeared in women’s magazines, and the issue has received attention in both the national and local newsletters of the National Organization for Women (NOW). In 1988, *Good Housekeeping* published an article about seven mothers from several different states—New Hampshire, Massachusetts, Ohio, Mississippi, Nebraska, and Georgia—who were thrown into jail for contempt of court for refusing to turn their children over to allegedly abusive fathers for unsupervised weekend visitation.⁴

That same year, *U.S. News and World Report* printed a feature story on April Curtis, a twenty-seven-year-old San Bernardino, California, schoolteacher who, after making an appearance on *the Sally Jessy Raphael Show* to tell her story, fled with her four-year-old daughter into the “Underground Railroad.”⁵ Her charges that her daughter had been sexually abused were substantiated by the fact that the girl had contracted condyloma, a sexually transmitted disease. Nevertheless, the evidence was ignored by a family court judge.

In 1989, *Newsweek* published a My Turn column written by Washington, DC, cosmetic surgeon Elizabeth Morgan, who spent twenty-five months in jail rather than turn her daughter over to the man she had accused of sexual abuse, as ordered by a family court. That same year, one of the November feature articles in *New York Woman*, titled “Women and Children Last,” carried a provocative tag on the magazine cover that summed up the issue in a phrase: “The Horror of Family Court.”

Stories of courageous mothers who have fought the system to protect their sexually abused children have appeared in newspapers as well. *USA Today* columnist and editor Barbara Reynolds wrote two columns: “Children’s Cries for Help Deserve More Attention” (1993) and “Judges Sentence Kids to Life of Pain” (1995). Former *New York Times* columnist Anna Quindlen, in one of her last columns for the paper, wrote: “While we are quick to believe in the stranger pedophile . . . conventional wisdom has it that sexual abuse is the cry-wolf of the vindictive, a common ploy in custody battles. That’s simply wrong Yet some judges, out of denial or ignorance, continue to label women who insist their children are being molested as crazy, bitter, unfit.”⁶

Michael Leshner, one of the authors of this book, co-wrote a major article for the *Village Voice* in the fall of 1996 on a mother’s futile struggle to get a New York family court to investigate the charges that her ex-husband had abused their six-year-old daughter—futile despite the fact that an eyewitness had confirmed an act of abuse and that the charge had been corroborated by one of New York’s leading authorities on sexual abuse. Not only was the father never investigated; the mother lost custody and, later, her visitation rights as well.⁷ Daily newspapers in such states as California, Texas, Indiana, Arkansas, and Iowa have described similar cases.

In 2004, the New York case of Bridget Marks, who lost custody of four-year-old twin daughters because she accused the father of sexually inappropriate behavior with them, attracted national attention. The case presented some unusual features. The children’s father, a millionaire casino executive named John Aylsworth, had fathered the girls during an extra-marital affair with Marks, a model who had once been featured in *Playboy*. Aylsworth had urged Marks to abort the twins during her pregnancy. He had refused to divorce his wife and marry her even when Marks insisted on bearing the children, prompting the end of the couple’s relationship. As a result, the girls hardly knew Aylsworth when he filed his request for full custody in New York’s family court

system. Meanwhile, Marks had begun to worry about Aylsworth's conduct around the girls. A babysitter reported that the children told her their father had "touched their pee-pee." A police investigator thought enough of the issue to recommend that a prominent forensic psychologist interview the children—an interview that never took place. Another psychologist recommended strict supervision for the father's visits with the girls. Marks produced expert witnesses at trial who confirmed that her suspicions of sexual abuse under the circumstances were not unreasonable.

Nevertheless, the Manhattan Family Court judge—true to the patterns established in the cases described above—granted full custody to Aylsworth, although this meant removing both four-year-olds from the only parent who had ever cared for them. The judge even denied Marks any visitation with her daughters except under conditions of strict supervision—which Marks had to pay for. The judge claimed that Marks's belief that her daughters had been molested revealed such "unbridled anger" that she could not be trusted to foster a "loving" relationship between the man she had accused of abuse and the children she was trying to protect. Responses to the case in the popular press and on the Internet were prompt and, for the most part, outraged. Family court madness had once again found a place in public view.⁸

PUBLISHED STUDIES ON THE PLIGHT OF THE PROTECTIVE MOTHER

The plight of protective parents has also begun to draw the attention of lawyers and social scientists. A growing body of professional literature is reporting that the family courts are failing to protect sexually abused children, while punishing mothers who report abuse. Sharon S. Keating, a Louisiana lawyer, wrote in 1988 for the *Loyola Law Review*:

[I]t is feared that if a parent makes . . . an allegation [of abuse against the other parent], that parent will be automatically branded as a paranoid, vindictive person These attitudes can easily lead to a prejudice so strong that the likelihood that a court will choose an accusing parent as future caretaker for the child is greatly diminished. Thus the parent is in a no-win situation. If the . . . parent remains silent about the abuse, it will surely continue. But if accusations are made, the [nonoffending] parent could lose custody completely, placing the child in constant danger.⁹

In the *Journal of Child Sexual Abuse*, Neustein and Goetting (1999) illustrated specific patterns of judicial responses to a “non-offending” parent’s complaints of sexual abuse, showing the “interplay of judges, guardians ad litem, caseworkers and forensic experts in cases where sexual abuse claims were raised [prior to] or during child custody proceedings.” Analyzing three hundred cases over a ten-year period, from 1988 to 1998, the authors found that in 70 percent of the cases the mothers were forced by court order to send their children on unsupervised visits and to share custody with the alleged abusers. In 20 percent of the cases the outcome was far worse: mothers lost custody completely to the allegedly abusive parent. Among this group of mothers who lost custody to their former spouse or partner, a large number also lost all visitation rights.

Family courts’ treatment of sex abuse allegations is demonstrably out of step with contemporary literature: by the mid-1980s, Russell (1983, 1986) had demonstrated with her random sample of San Francisco women that serious and damaging incest was more prevalent than had been thought and appeared to be increasing over time. Yet protective mothers are still overwhelmingly disbelieved in the family court system, according to Myers (1997). Finkelhor (1986) pointed out that judges would rather believe that a mother would “brainwash” a child to make up stories than face the fact that incest not only exists but is

found in every culture, in every socioeconomic group, and in every class of society, including the educated and articulate.

Faller (2000), in a *University of Arkansas Little Rock Law Review* article,¹⁰ concluded that notwithstanding the literature on child abuse and clinical experience showing that allegations of sexual abuse during divorce and custody are deemed likely in two-thirds to three-quarters of all cases,¹¹ family court judges usually respond to such allegations with much skepticism (pp. 429–430). Penfold (1997), in a law journal article exploring “questionable beliefs about child sexual abuse allegations,” added that judges often react harshly to mothers who allege sexual abuse, even to the point of transferring custody to the father.¹²

In *The Hostage Child: Sex Abuse Allegations in Custody Disputes* (1996), Rosen and Etlin similarly describe what happens when the battered wife seeks to protect herself from abuse and “is viewed [by the court] as unwilling to share access to her children with her abusive husband”: her punishment “is to lose custody to the abusive father who in the court’s eyes is a better parent than one who cannot protect her children” (pp. 142–143). Clearly, sexual abuse of one’s child does not appear to preclude an award of custody to the abuser: “[T]he current trend which effectively refuses protection to children whose mothers allege sexual abuse and punishes their mothers, may be seen as part of the backlash against feminism . . . [wherein] mother’s rights had been deteriorating for some time before the main backlash received the [feminist] movement’s attention” (p. 144).

In 1998, Massat and Lundy, two professors of social work at the Jane Addams College of Social Work of the University of Illinois, reported in *Child Welfare* on their three-year study of the hidden costs to mothers who attempt to protect children allegedly abused by their fathers. They used four criteria (relational, financial, vocational, and residential), which they applied to a sample of 104 non-offending parents whose cases were before family courts, and drew the following conclusion: “Learning that one’s child has been sexually abused is to learn not

only that one's child has been harmed but harmed in a way that does not bring about public support in the same way that a physical accident or illness may."¹³

Besides the growing corpus of studies of family court malfunction, there have been several published reports by prominent women's organizations and gender-bias task forces commissioned by state courts that have expressed similar concerns.

In 2002, the California chapter of NOW issued the results of a three-year investigation into "the ways women are abused by the family court system in California."¹⁴ NOW conducted extensive interviews with mothers and reviewed their court documents. Some of the issues covered in the NOW report were gender biases, denial of due process, conflict of interest and corruption, and the use of false "syndromes" to discriminate against mothers in family courts.¹⁵ After the report was completed, NOW's California chapter urged its subsidiaries throughout the state to press for serious changes to the family court system.

In November 2002, the Wellesley Centers for Women published the findings of a study that analyzed the cases of thirty-nine Massachusetts mothers who reported both "intimate partner violence" (abuse by a partner or spouse) against themselves and sexual abuse of their child or children by the allegedly violent partner. The 106-page report, titled *Battered Mothers Speak Out: A Human Rights Report on Domestic Violence and Child Custody in the Massachusetts Family Courts*, documented instances "in which the Massachusetts family courts are violating internationally accepted human rights laws and standards . . . [and] are violating Massachusetts law and policy" (p. iv).¹⁶ In the June 2004 issue of the *American Journal of Public Health*, the authors summarized their findings, which revealed "a consistent pattern of potential human rights violations by state actors [judges, law guardians, social service agency workers, and others] of the Massachusetts family courts against women participating in the project and their children." These human rights violations included "failing to investigate allegations or consider docu-

mentation of child abuse as relevant evidence in cases of disputed child custody” (pp. 952–953).¹⁷

The Massachusetts Battered Mothers’ Testimony Project was copied in other states, with similar results. In June 2003, the Arizona Coalition against Domestic Violence released a report titled *Battered Mothers’ Testimony Project: A Human Rights Approach to Child Custody and Domestic Violence*. Fifty-seven women were interviewed for this study. Its conclusions amounted to an indictment of the family court system. The authors stated: “state law was violated virtually at every turn,” and “Constitutional issues such as due process, equal protection and the fundamental right of parenting were violated by arbitrary rules and actual practice.” The report concluded with a “call for action to policy makers, the legal community, state government and, most importantly, the public” (p. 7).¹⁸

The findings of such reports documenting serious abuses by the family court system in its treatment of protective mothers, startling as they are, were not unprecedented. The state-funded Judicial Council of California Administrative Office of the Courts produced a lengthy report in 1990 (*Achieving Equal Justice for Women and Men in the Courts*)¹⁹ that found evidence of gender bias in the courts, including “serious problems . . . in decision making, court practices and procedures, the fair allocation of judicial resources, and in the courtroom environment” (p. 1):

Similarly, the Judicial Council Advisory Committee showed that while the conduct of judges constituting gender bias has resulted in judicial discipline by the Commission on Judicial performance . . . many more examples of conduct exhibiting gender bias or the appearance of gender bias have occurred that have not resulted in judicial discipline and include . . . openly hostile behavior; the utterance of sexual innuendos or dirty jokes; the occasional and offensive use of terms of endearment to refer to

women participants in the courtroom; hostility and impatience toward causes of action uniquely involving women. (pp. 5–6)

Writing in *Judicare* in 1987, New York attorney Lynn Hecht Schafran summarized some of the critical findings of the New York State Task Force on Gender Bias in the Courts:

The Task Force has concluded that gender bias against women litigants, attorneys and court personnel is a pervasive problem with grave consequences. Women are often denied equal justice, equal treatment and equal opportunity. Cultural stereotypes of women's role in marriage and in society daily distort courts' application of substantive law. Women, uniquely, disproportionately, and with unacceptable frequency must endure a climate of condescension, indifference and hostility. (p. 283)

Karen Winner, a veteran investigative journalist, wrote in *Divorced from Justice: The Abuse of Women and Children by Divorce Lawyers and Judges* (1996) about "the gaping black hole of justice" in domestic litigation, describing a lawless system in which judges and lawyers "are governed by their own system of self-rule" (p. 93). Winner, a former policy analyst for the City of New York Department of Consumer Affairs, also studied various counties in California, paying specific attention to protective mother issues, and concluded that the family courts sorely mishandle charges of sexual abuse. Under the auspices of Justice Seekers, Inc., a privately funded, nonprofit, New York-based court watch and citizen's action organization founded by Winner in 1997, Winner authored several reports on the family courts across several northern California counties.

Here are some of Winner's conclusions regarding cases she investigated: "the judge and commissioner put power . . . and self-interest over the welfare and safety of children and litigants";²⁰ "pedophile-friendly views . . . are deeply entrenched in the Sacramento court system and

surrounding areas This report [shows] that the psychological evaluations produced for the courts were so flawed and skewed in many cases, that they amounted to hoaxes perpetrated on the litigants and on the judges deciding the outcomes.”²¹

In fact, Winner expressed to us the urgent need for civil disobedience to combat the disastrous treatment of protective mothers and their children in America’s family courts. And her report has received important confirmation: a prominent matrimonial attorney in Marin County, California, has told a journalist, “Although I disagreed with some of the factual details of the Winner report, I thought that overall, in general, it described the situation.”²²

Clearly, the reality of family court malfunction is well documented. But nearly all reports and studies of family court malfunction attempt to abstract a “root cause” for the system’s failure. Most studies have relied on traditional gender-based explanations built on a sociohistorical view of child sexual abuse awareness and society’s readiness to acknowledge abuse. For example, Olafson, Corwin, and Summit (1993) performed a thorough historical analysis of the “cycles” of discovery and suppression in the complex history of sexual abuse awareness. Myers (1997) calls the year 1975 “the great divide in the professional literature” (p. 132), when the predominant skepticism about abuse charges eroded in the face of the strong feminist movement of the 1960s and 1970s. Although such sociohistorical analyses are indeed of importance in their own right, the focus of our book—as we have remarked in the introduction—is somewhat different. We examine the inner dynamics of the ways the family courts have evolved into oppressive, biased dispensers of justice, whose decisions so often run counter to the best interests of children.

WHERE THE MADNESS COMES FROM

Family courts can work only as well as the lawyers and judges who inhabit them. Yet we have found serious deficiencies in both the bench and bar of the family court system.

Lawyers

Although this may surprise the uninitiated, most lawyers who handle divorce and custody litigation in family courts are poorly equipped to deal with charges of sexual abuse that arise in child custody litigation. In *The Hostage Child*, Rosen and Etlin (1996) give many examples of woefully inadequate legal representation in child abuse cases, citing among other instances a Texas mother who “pressed for a speedy trial on her daughter’s best interests” only to have her attorney “threaten to quit rather than try the case” (p. 79). Her experience was not exceptional: in 1989, Colorado activist attorney Alan Rosenfeld testified at a New York State legislative hearing on family court malfunction that most attorneys are reluctant to pursue claims of child sexual abuse.²³

This attitude on the part of much of the matrimonial bar has the effect of making child sex abuse allegations much more difficult to pursue in the courts—and this is ironic in view of statistical evidence that such charges are seldom fabricated. In 1988, the American Bar Association, in cooperation with the Association of Family and Conciliation Courts, issued a report on an in-depth study of allegations of child sexual abuse made in the context of custody and visitation proceedings. Nicholson and Bulkley, who edited the report,²⁴ found that “[d]eliberately false allegations made to influence the custody decision or to hurt an exspouse do happen, but they are viewed by knowledgeable professionals as rarities” (1988, p. 17). Along similar lines, the relevant section in a highly respected treatise for lawyers, *American Jurisprudence Proof of Facts* (3rd ed., 1995), after thoroughly analyzing all sides of the custody/abuse de-

bate, concludes: “[C]oaching is not a common occurrence in custody cases involving child sexual allegations.”²⁵

Yet the bulk of family law attorneys, hardened to the realities of family courts, are reluctant to risk making, or supporting, a sex abuse allegation. The *Proof of Facts* article quoted above notes that “alleging child sexual abuse rarely gives the mother an advantage” (contrary to popular belief) because “[w]omen who claim such abuse in a custody proceeding are often met with immediate suspicion. Even if true, the abuse allegation is difficult to prove . . . [and if] the allegations are not substantiated, the complaining parent risks losing custody, even if he or she would have won on the merits without such a claim.”²⁶ As a result, most protective mothers are likely to find themselves without eager representation. A prominent Brooklyn matrimonial attorney (and former president of the Brooklyn Bar Association matrimonial committee) told one of us that the bulk of sex abuse allegations in divorce litigation were acts of “revenge” and that even validation by a professional was meaningless in such cases because “those validators were feminists who had their own issues with men.”

Family court lawyers who bring to these courts the expectations learned in other tribunals may find themselves swimming against the tide. A Massachusetts divorce attorney told one of us recently: “The reason I do a diligent representation of my clients is because my practice entails other specialties of the law; I bring to family court [litigation] what I bring to my cases in other areas.”

Julia Heit, a New York City divorce attorney whose practice also includes criminal and civil appeals, reported to us that she was once driven to ask an old colleague from the Legal Aid Society: “Can it be true that in the Family Court the Constitution is thrown to the winds?” Against this background, it is not surprising that most lawyers who work in the family court system have come to accept as standard practices what might be regarded as highly questionable in other arenas.

Heit also told us that “family court isn’t a court, it’s a club.” This means that protective mothers often find local practitioners and experts unwilling to jeopardize their relationships with family court judges by presenting an unpopular sex abuse allegation. In a Green Bay, Wisconsin, case, for example, two school-age boys were held in the custody of a father whose behavior included showering with the children and other “inappropriate conduct of the nature that can be considered sexual.” Only when the mother, with the help of an out-of-state activist, changed attorneys (selecting a new one from the other end of the state) and brought in new experts (including one from out of state) did she persuade a judge to alter a previous ruling and transfer custody to the mother (and order supervised visitation for the father). Evidently the conventional local network of lawyers and experts was not prepared to advocate for these steps.

Something similar occurred in a New York City case in 1991. A popular court-appointed expert testified that the mother had “a personality disorder” with “borderline and schizotypal features,” because she complained that her eight-year-old daughter was forced to sleep on Saturday nights in her father’s bed (an arrangement against which the child also protested). The mother’s lawyer (according to the mother’s report to us) would not take any action to challenge the expert’s testimony. The mother hired new counsel who did challenge the expert, and in the end the judge put an end to the sleeping arrangement, writing in his decision that the mother’s concerns were absolutely justified: “the recognized phenomena such as nocturnal erections could, under such sleeping arrangements, have the effect of frightening the child.” It would seem likely that the mother’s first lawyer was reportedly unwilling to fight an expert he would probably see again in future cases.

The difficulty for advocates who oppose the tide is compounded by the glacial pace of many family courts. In the mid-1980s, popular TV talk show personality “Judge Judy” (Judith Scheindlin) was a sitting judge in the Manhattan Family Court. Scheindlin ruled in favor of a Russian im-

migrant mother whose nine-year-old daughter had been removed from her by child protective services without sufficient legal grounds. But the mother had to wait six long months before Judge Scheindlin could even hear her case.

Men's Rights/Fathers' Rights Groups

The feminist writer Louise Armstrong, in *Rocking the Cradle of Sexual Politics: What Happened When Women Said Incest* (1994), described the emergence of the fathers' rights movement in the early 1980s as a "corrective" to "increased pressure to enforce child support" (p. 68). Armstrong points to the Men's Equality Now International Coalition as one of the first men's rights/fathers' rights organizations to circulate an official bimonthly newsletter offering advice on winning child custody cases as well as reducing or eliminating child support burdens by claiming alienation of affection and/or denial of visitation, among other litigation goals.²⁷

The effect of the fathers' rights movement should not be taken lightly. The American Coalition for Fathers and Children (ACFC), founded in 1986, is one of the largest fathers' rights groups in the country. Sporting a distinctive logo, the ACFC has sprouted chapters all over the United States. On its website (www.acfc.org), the ACFC states its primary goal: "disseminating the truth about fathers and families" and exposing "the hypocrisy that exists in the news media." And the organization can boast of some success: several legislators we interviewed have told us—using language that closely parallels ACFC's literature—that women frequently fabricate sex abuse charges to gain an advantage in custody litigation.

Matrimonial attorneys often play leading roles in fathers' rights groups, and this means that these lawyers may have close relationships with family court judges—relationships that can easily be misused. This was evident when Jay Shoulson, an attorney who was then chief counsel to the Fathers' Rights Association of Metro New York and Long Island, ap-

peared at a legislative hearing specifically to defend Leon S. Deutsch, a Brooklyn Family Court judge notorious for his punishment of mothers who alleged child sexual abuse.²⁸

Shoulson testified to state legislators, who had assembled to hear complaints about Brooklyn Family Court, that Judge Deutsch was “a really caring individual” and that the mothers who had testified against him were “vindictive.”²⁹ The outraged mothers and their supporters confronted Shoulson in a corridor outside the hearing room, where he heatedly insisted that the women who had testified about Deutsch’s judicial abuses “had an axe to grind.”

One of those mothers later became acquainted with Humberto Middleton, a legal client of Shoulson and an active member of his Fathers’ Rights Association. In a remarkable letter written in December 1991, Middleton disclosed to her that Shoulson’s advocacy for Judge Deutsch, and his implicit attack on one of the judge’s victims, was prearranged with Deutsch himself. Shoulson, he wrote, had boasted of his relationship with Brooklyn Family Court judges including Deutsch:

He [Shoulson] went on to say that he was connected with Judge Deutsch and that as a favor to the Judge he had promised to discredit [you] whenever possible One of the things that Rabbi Shoulson requested of me was to inform him of everything and every time you had some involvement with the Fathers Rights Association of which I am a member. When I refused and told him that I did not have the time or desire to monitor your activities . . . that triggered another response from him.³⁰

According to Middleton, Shoulson in effect had volunteered to be both advocate and spy for a family court judge. What is more, he saw no reason not to boast of it to a client. This anecdote has much to say about the role fathers’ rights groups may play in the family court system, at least in some cases.

Judges

Matrimonial lawyers take their cue from the judges who rule the family courts. The published findings about the scarcity of deliberately fabricated allegations, cited above, have had little discernible impact on judges, who continue to believe that women charge sex abuse out of “vindictiveness” during an acrimonious custody proceeding. For example, Judge William Thompson—New York State’s chief appellate justice for the state’s Second Judicial Department—told investigative journalist Karen Winner, “You know what happens in every matrimonial case now? They go to the lawyer and the lawyer says, ‘/You know we’re going to holler sexual abuse./’ Everything stops.... That’s become the password now.... Holler sexual abuse and every goddamn thing slows down. It’s getting to be a disaster now because that’s the password now.”³¹

Beliefs like these have much to do with the family court system’s persistent mishandling of sex abuse allegations and its tendency to make the accuser, rather than the accused, pay the price of such charges. In 1992, New York State Senator David A. Paterson declared at a press conference, the purpose of which was to bring public attention to the family court system’s mishandling of sex abuse cases: “This is about as serious an indictment of government as I can think of in all the time I’ve been in office.”³² Paterson was not a lone voice; more than a half-dozen legislators and members of the New York City Council echoed his indictment at the same press conference.

During a two-day legislative hearing into family court malfunction held in 1989, New York State Assemblyman (now Congressman) Jerrold Nadler exclaimed: “I’ve been shocked to discover in case after case the consistent denial of due process rights to women attempting to protect their children from sexual abuse ... [and] the public is not aware of the terrible miscarriages of justice.”³³

Midway through the hearing, after listening to “so many cases where the child is handed over to the abuser and the mother is punished,” Nadler referred to what was happening in the family courts as “/the judicial rape of children./”³⁴ After that comment appeared in the *New York Post*, a high-ranking official of the New York State Bar Association publicly challenged Nadler to retract it. He refused.

HOW THE SYSTEM RESPONDS TO CRITICISM

Jerrold Nadler may have been surprised that his well-deserved criticism of family courts drew a denial, rather than sympathy, from a prominent Bar Association official. But his experience is typical. The family court system is largely impervious to the sort of criticism presented above. In 1988, the *Journal of the American Academy of Child and Adolescent Psychiatry* published an extraordinary public rebuke of a popular expert witness in child sexual abuse cases, Dr. Arthur Green, signed by psychiatrist Graeme Hanson and eighteen cosignatories, all of them specialists in child sexual abuse, which stated: “Our major concern is that Green’s assertions may be taken as a standard of practice by those clinicians relatively inexperienced in the area of child sexual abuse . . . [and] it is our fear that Green’s [assertions are] likely to be used in judicial settings to the detriment of a large number of children caught in custody battles who have actually been sexually abused.”³⁵

That sharp criticism, however, had no apparent impact on Green’s reputation in family courts. Roughly a year after this warning about Green’s work appeared, the *New York Law Journal* undertook an informal survey of New York City judges to determine their attitudes toward Dr. Green’s controversial theories—theories that claimed, in essence, that divorcing women frequently lie about sex abuse to get back at their husbands. Out of forty-five family court judges, only two expressed any definite concern about having an expert such as Green testify in their

courtrooms. According to the *Law Journal*, one of those two judges, Abraham Jurow, “suggested the court should ferret out experts who have published articles stating strong opinions about the truth or falsity of allegations of child sexual abuse and accord their predispositions proper weight in evaluating their testimony.”³⁶ But that comment stood alone. Evidently, the great majority of New York City’s family court judges were unperturbed by Dr. Green’s ominous reputation among his peers.

In fact, when a family court judge departs from the “mad” logic typical of the system, they may actually be subject to reversal by a higher court (on those rare occasions when an appellate court even reviews the facts underlying a family court decision). That happened in a 1999 New York case in which the judge awarded custody to a protective mother even though the judge was not persuaded that the father had sexually abused the child. The judge found that the mother had not been malicious in making her allegations; rather, she was “hypersensitive” to issues of abuse (perhaps because she was allegedly abused herself as a child). The judge found her a fit parent, “more in tune” with the child than the father, and awarded her custody based on her history of being primary caretaker. However, the appellate court discarded the judge’s findings, stating that the mother’s motivation was irrelevant—all that mattered was that her allegations of sexual abuse were not ultimately substantiated.³⁷ The court then reversed the trial judge and awarded custody outright to the father despite the trial court’s findings about both parents. The appellate court went so far as to criticize the mother for taking the child to a therapist and for causing the father’s visits to be temporarily supervised—even though these are fairly routine steps when abuse is suspected. Family court orthodoxy was thus ensured by the reversal of an unusually sensitive ruling by a family court trial judge.³⁸

FAMILY COURT SYSTEM UNDER ATTACK: FEDERAL JUDGE CHAMPIONS MOTHERS' CAUSE

In 2002, Chief Judge Jack Weinstein of the US Court for the Eastern District of New York, in a landmark decision, gave voice to the plight of at least some of the mothers victimized in family courts. Although Judge Weinstein did not address the problems of child sex abuse allegations, his long decision in a high-profile case sheds important light on family court malfunction.

In *Nicholson v. ACS*,³⁹ Judge Weinstein considered the claims of mothers who had been needlessly separated from their minor children solely because the mothers had been battered by a husband or lover. Judge Weinstein concluded that New York City's Child Protective Services (CPS) agency had indeed taken this astonishing approach to domestic abuse: "the abuser [is] left unaccountable because it is administratively easier [for child protective services] to punish the mother by separating her from her children."

Judge Weinstein found that the CPS agency had penalized mothers for enduring abuse on the theory that they had "failed to protect" their children from abuse, or potential abuse, by a father—even where their circumstances made it difficult for the mothers to leave the marital home. (One of those circumstances, ironically, was the fear of losing custody if they did leave. Louise Armstrong noted in *The Home Front: Notes from the Family War Zone* [1983] that when a woman is battered and threatens to leave, the batterer may counter with a threat that he will sue for custody.) Judge Weinstein found that "statistics, individual cases, expert testimony, and admissions of ACS (Administration for Children's Services) employees demonstrate that many more separations of abused mothers and their children are made by ACS than are necessary for protection of the children" (p. 50).

In summarizing the facts concerning removals of children from battered mothers, Judge Weinstein declared: “the Thirteenth Amendment should protect exploited workers, *abused mothers*, neglected children, and all other victims of relationships reminiscent of *slavery*” (p. 76, emphasis supplied). The bitterness of the judge’s analogy—as well as the fact that in the case of abused mothers it is the machinery of the family court system that adds to the mothers’ oppression—is a measure of family court madness.

HOW MOTHERS REACT TO THE MADNESS

In light of all this, it is not surprising that more and more mothers who have cases in family courts are rebelling. H. Joan Pennington and Laurie Woods of the National Center on Women and Family Law began their 1990 report, *Legal Issues and Legal Options in Civil Child Sexual Abuse Cases*, with this announcement:

Recently there has been an increase in the number of cases in which mothers who are convinced that their children have been sexually abused by their fathers have taken away or hidden their children, sometimes in violation of court orders . . . because they have concluded that the legal system will not protect the children. These mothers believe that they have only one way left to them in order to protect their child. In many situations, friends, family, or a network of supporters have helped the mothers and children leave the area and go into hiding. This has become popularly known as The Underground Movement. (p. 1)

The “Underground Movement” has grown up recently and rapidly. Phyllis Chesler’s *Mothers on Trial* (1986) surveyed the literature on child custody from the 1970s and early 1980s and found that “studies of ‘child

snatching' or parental kidnapping confirm that most parental child kidnappers are fathers [and not mothers]" (p. 446). Yet by 1990, parental abductions by mothers who suspected abuse were sufficiently organized to be called a "movement."

The "mutiny" of protective mothers against the family court system today has many of the earmarks of a movement. For example, many of the rebellious mothers have come to see the unaccountable judicial actions in their cases as part of a larger social and legal malady, rather than as aberrations or anomalies.

Activist mothers have aggressively sought the attention of lawmakers. Although new legislation seldom results from this activism, the protective mothers can be profoundly affected even by sympathetic words. In March 1989, at a legislative press conference on the eve of the first of a series of hearings held by then New York State Assemblyman Jerrold Nadler on the family courts, Faye Yager—founder of an Atlanta-based organization she later called "Children of the Underground"—exclaimed to Amy Neustein: "I can't believe what I'm hearing. Why didn't I have a legislator speaking out in my day when I all alone was up against a court system that refused to protect my daughter, who contracted gonorrhea from her father?"

In January 2004, the activist movement reached another milestone. Nationally recognized attorneys, advocates, and protective mothers from all over the country convened at Siena College, just outside Albany, New York, for a two-day summit on the abuse of mothers in the family courts. The conference, organized by Siena psychology professor Maureen Therese Hannah and an activist North Carolina mother, Liliane Heller Miller, was intended by the organizers to "kick off a campaign of activism" that would take the family court scandal to "the highest levels" of government and to the public at large. New York State Assemblyman Felix Ortiz was among the featured invitees. The conference began with a special invocation by journalist and author Barbara Reynolds, former columnist and editor of *USA Today*, who called it a "historic moment" in

the movement for equality for mothers in the family courts throughout the nation.⁴⁰

Pro se Rebels

Protective mother “mutiny” may take many forms. Taking on her own representation in court is often the decisive step that turns a protective mother into a rebel. Such mothers become increasingly strident in their court behavior: they lash out at the judge and the auxiliary players, demanding their rights, accusing the officials of misconduct, sometimes accusing them of “conspiracies.” Some mothers have shocked themselves with their conduct. One New York State protective mother told the Director of the Women’s Office at the Archdiocese of New York, “I didn’t know I had it in me to be so bold.” Sometimes such mothers are punished by angry judges for their tirades; on other occasions, family court personnel simply seem to ignore them.

As a strategy, however, pro se rebellion is not particularly beneficial to protective mothers. Court personnel tend to regard pro se litigants as eccentrics. Thus, they may give them unusual leeway when it comes to “acting out,” but this tolerance rarely implies sympathy with their position in the litigation. In some of the cases we have reviewed, it was precisely a protective mother’s behavior as her own attorney—defending herself at great length, accusing the social workers of misconduct, “rambling” as she tried to explain her view of the entire case—that supported the judge’s ultimately hostile rulings concerning her. That is, mothers who had been good, nurturing parents (providing for their children’s basic needs and more) were evaluated in family court not for their parenting but for their awkward conduct in the courtroom.

Fleeing

Another way women may rebel against the family courts is by literally running away from them.

An organized “underground” movement for protective mothers began in 1987 when two Mississippi mothers, Karen Newsom and Dorrie Lynn Singley, made headlines for defying the orders of family court judge Sebe Dale, who had ordered them to surrender their children into their fathers’ custody.⁴¹ Judge Dale had refused to hear compelling medical evidence that supported the allegations of abuse in each case.⁴² While Karen Newsom went to jail—after placing her two preschool daughters in hiding—Dorrie Lynne Singley took flight with her child and disappeared into an impromptu underground network of sympathizers.

Neither story ended happily. After forty-three days in jail, Newsom “broke,” according to her supporters, and disclosed her children’s hiding place to win her release from prison. Singley, twenty-seven, died of a brain aneurysm while on the run.

At almost the same time, Virginia LaLonde of Massachusetts spent six months in jail for refusing to reveal the whereabouts of her daughter, whom she had hidden in a “safe house” run by a friend, in order to prevent her ex-husband from gaining access to the child.⁴³

These three highly publicized cases caught the attention of many other mothers. Among them was Faye Yager, who transformed an embryonic underground into an organized, transcontinental network of safe houses.

Yager, a successful entrepreneur and the wife of an Atlanta family doctor, had suffered her own family court tragedy years earlier when a family court judge had awarded sole custody of her four-year-old daughter to Yager’s former husband, despite medical evidence that he had sexually abused the girl. Spurred by what she read, Yager joined the mothers’ movement in 1988 and turned her energy and organizational talents to the formation of a nationally known movement of fugitive mothers.⁴⁴

Through the late 1980s, and for most of the 1990s, Yager frequently made front-page news and was a regular guest on popular national talk shows. In 1988, she was profiled by CBS News's *60 Minutes*, along with another high-profile activist and safe house operator, Lydia Rayner, the wife of a popular Mississippi obstetrician.

Yager's expansion of the new Underground Railroad (she would later call her organization Children of the Underground) encouraged other activists to form undergrounds of their own. Attorney H. Joan Pennington testified in 1992 to the House Judiciary Committee that "there is a vast underground network, where hundreds, perhaps thousands of parents and children live as fugitives."⁴⁵ By 1997, McKenzie Carpenter, a reporter from the *Pittsburgh Post-Gazette*, had identified four major underground railroads in the United States for mothers of abused children in a five-part series she did for the paper.⁴⁶

Yager's high profile has had disadvantages. She was sued several times by fathers whose children she had placed in hiding. In the late 1990s, Yager—having spent all her money on her own legal defense—finally quit the Underground Railroad. Nevertheless, she continued in her harsh criticism of the family court system. In 2001, she told a Pennsylvania newspaper: "It's a crisis.... We're not free from anything if we can't free our own children."⁴⁷

Politicking

Many protective parents who do not seek refuge in the Underground Railroad do, however, seek the attention of legislators and the media. This is not an easy task. It generally requires a mother to assemble copious documentation on her own case and (if possible) other similar cases. And few legislators and newspaper editors are prepared to challenge the popular assumption that women frequently invent sex abuse charges to gain leverage in custody disputes.

Organizations such as Justice for Children (based in Houston, Texas) have tried to stimulate greater interest in the protective mother problem among legislators and other officials. Regional Director Eileen King, who has been taking calls at Justice for Children's Washington, DC, office since 1995, reports receiving hundreds of calls each month, from states all over the country, from protective mothers seeking help. She says her organization is steadily seeking the ear of public officials who can do something to improve the situation. But Justice for Children's lobbying efforts have so far borne little fruit, although King says she will persevere.

In some instances, protective mothers' assiduous preparation and "politicking" have paid off to some extent. New York State Senator David A. Paterson, in a 1995 letter to the deputy acting chief of the Child Exploitation and Obscenity Section of the US Department of Justice, was sufficiently convinced by one Brooklyn, New York, mother's case to write: "there is such an intensely ferocious effort made by judges, social services and law guardian agencies . . . to protect the father from an [abuse] investigation." Still, the Department of Justice took no action. The details of mothers' rebellion against the family courts will be described in Part II, Chapter 8.